



CHAPTER ci.

An Act to confer further powers upon the mayor
aldermen and burgesses of the borough of Mansfield
with respect to their water undertaking to make
further and better provision in regard to the health
local government and improvement of the borough
and for other purposes. A.D. 1905.
[11th July 1905.]

WHEREAS the borough of Mansfield in the county of Nottingham (in this Act referred to as "the borough") is a municipal borough under the government of the mayor aldermen and burgesses thereof (in this Act referred to as "the Corporation") :

And whereas the Corporation are the owners of waterworks and supply water within the borough and elsewhere under the powers in that behalf conferred upon them by the Mansfield Water Act 1870 and the Mansfield Corporation Act 1901 :

And whereas the demand for water within the borough and the districts supplied by the Corporation has increased and is still increasing and for the better and more effectually enabling the Corporation to meet such demand it is expedient that the Corporation should be empowered to construct the additional waterworks by this Act authorised :

And whereas the parish or township of Clipstone is not now supplied with water but could conveniently be supplied by the Corporation and it is expedient that the said parish or township should be included within the water limits of the Corporation :



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And whereas the parish or township of Clipstone is not now supplied with water but could conveniently be supplied by the Corporation and it is expedient that the said parish or township should be included within the water limits of the Corporation :

A.D. 1905.

And whereas it is expedient that the agreement a copy of which is set out in the First Schedule hereto between the Duke of Portland K.G. and the Corporation should be confirmed and that such other provisions as are in this Act contained should be made with reference to the water undertaking of the Corporation :

And whereas it is expedient that further and better provision be made with reference to streets buildings and sanitary matters and for the health local government and improvement of the borough and that the powers of the Corporation in reference thereto should be enlarged and extended :

And whereas it is expedient that the Corporation be authorised to alter enlarge and improve their town hall and to provide erect fit up furnish and use municipal and other public buildings as in this Act mentioned :

And whereas a valuable museum and collection of objects of instruction and interest has been presented to the Corporation by the late Edward Bailey and it is desirable to enable the Corporation to provide for the erection and maintenance of a suitable building therefor and it is expedient for that purpose to make the provisions in that behalf in this Act contained :

And whereas it is expedient that the other provisions in this Act contained should be sanctioned :

And whereas the objects aforesaid cannot be effected without the authority of Parliament :

And whereas it is expedient that the Corporation should be authorised to raise money for the following purposes (that is to say) :—

- (A) For the purchase of land for and the construction of the waterworks by this Act authorised and otherwise in relation to their water undertaking the sum of forty thousand pounds :
- (B) For the purchase of lands in connexion with the construction extension and improvement of the sewage works of the Corporation the sum of six thousand pounds :
- (c) For the purposes of the section of this Act of which the marginal note is "Power to improve &c. town hall &c." such sum as the Corporation shall with the sanction of the Local Government Board determine :

A.D. 1905.

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- (B) For the purchase of lands in connexion with the construction extension and improvement of the sewage works of the Corporation the sum of six thousand pounds :
- (c) For the purposes of the section of this Act of which the marginal note is "Power to improve &c. town hall &c." such sum as the Corporation shall with the sanction of the Local Government Board determine :

(D) For the purchase of land for and the erection and fitting up of a museum the sum of three thousand pounds: A.D. 1905.

And whereas estimates have been prepared in relation to the foregoing purposes (A) (B) and (D) and the several works and purposes mentioned in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas plans and sections showing the lines situations and levels of the waterworks authorised by this Act and the lands which may be taken under the powers of this Act and a book of reference to those plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of such lands have been deposited with the clerk of the peace for the county of Nottingham and are in this Act referred to as the deposited plans sections and book of reference:

And whereas an absolute majority of the whole number of the council at a meeting held on the 15th day of November 1904 after ten clear days notice by public advertisement of such meeting and of the purposes thereof in the Mansfield and North Notts Advertiser a local newspaper circulating in the borough such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the borough fund and district fund or borough rate and general district rate or one or other of them:

And whereas the said resolution was published twice in the Mansfield Chronicle a newspaper published and circulating in the borough and has received the approval of the Local Government Board:

And whereas the propriety for the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the 13th day of January 1905 being not less than fourteen days after the deposit of the Bill in Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the Borough Funds Act 1903 have been observed:

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And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the Borough Funds Act 1903 have been observed:

A.D. 1905.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited for all purposes as the Mansfield Corporation Act 1905.

Act divided
into Parts.

2. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Water.

Part III.—Lands.

Part IV.—Streets Buildings and Sewers.

Part V.—Sanitary Provisions.

Part VI.—Infectious Disease &c.

Part VII.—Sewage Lands.

Part VIII.—Town Hall &c.

Part IX.—Museum.

Part X.—Bands &c.

Part XI.—Finance.

Part XII.—Miscellaneous.

Provisions
as to certain
general Acts
incorporated.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act namely :—

The Waterworks Clauses Acts 1847 and 1863 except—

(A) The words “ with the consent in writing of the owner
“ or reputed owner of any such house or of the
“ agent of such owner ” in section 44 of the Water-
works Clauses Act 1847 ;

(B) Sections 75 to 82 of the Waterworks Clauses Act 1847
with respect to the amount of profit to be received
by the undertakers when the waterworks are carried
on for their benefit and section 83 relating to
accounts :

The Lands Clauses Acts (except section 127 of the Lands
Clauses Consolidation Act 1845).

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on for their benefit and section 83 relating to
accounts :

The Lands Clauses Acts (except section 127 of the Lands
Clauses Consolidation Act 1845).

4. In this Act the several words and expressions to which meanings are assigned by the Public Health Act 1875 have the same respective meanings unless there is something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

A.D. 1905.

“The Corporation” means the mayor aldermen and burgesses of the borough of Mansfield; Interpretation.

“The borough” means the borough of Mansfield;

“The council” means the town council of the borough;

“The town clerk” “the treasurer” “the surveyor” “the inspector of nuisances” and “the medical officer” mean respectively the town clerk the treasurer the surveyor the inspector of nuisances and the medical officer of health of the borough and respectively include any person duly authorised to discharge temporarily the duties of those offices;

“The borough fund” and “the borough rate” “the district fund” and “the general district rate” mean respectively the borough fund and borough rate district fund and general district rate of the borough;

“The water undertaking” means the water undertaking of the Corporation;

“The Public Health Acts” means the Public Health Act 1875 and any Act amending the same;

“Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 for the time being applies within the borough;

“Daily penalty” means a penalty for each day on which any offence is continued after conviction.

PART II.

WATER.

5. Subject to the provisions of this Act the Corporation may wholly in the county of Nottingham and in the lines and situations and upon the lands delineated on the deposited plans and described in the deposited book of reference and according

Power to construct waterworks.

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Power to construct waterworks.

A.D. 1905. — to the levels shown on the deposited sections make and maintain the following works (that is to say) :—

(1) A well and pumping station (to be called the Clipstone Pumping Station) wholly situate in the parish or township of Clipstone in the field numbered 293 on the Ordnance map scale $\frac{1}{2500}$ for the said parish or township Nottinghamshire Sheet No. XXIII. 7 (second edition 1898) :

(2) An aqueduct conduit or line of pipes commencing in the said parish or township of Clipstone at the afore-said well and pumping station and terminating in the borough of Mansfield by a junction with the existing line of pipes in Ratcliffe Gate at or near its junction with Newgate Lane in the said borough :

The said aqueduct conduit or line of pipes will be situate in the parish or township of Clipstone the parish of Mansfield Woodhouse and the borough of Mansfield.

Power to
make subsi-
diary works.

6. The Corporation in addition to the foregoing works may upon any lands for the time being belonging to them make and maintain all such cuts channels tunnels adits pipes conduits culverts drains sluices shafts wells ways basins dams outfalls washouts syphons trenches mains junctions valves engines pumps gauges filter beds tanks walls bridges embankments piers approaches telegraphs telephones and other means of electric communication engines machinery and appliances as may be necessary or convenient in connexion with or subsidiary to the before-mentioned works or any or either of them but nothing in this section shall exonerate the Corporation from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them Provided that any telegraphs and telephones made and maintained under the provisions of this Act shall not be used for the purpose of sending telegrams in contravention of the exclusive privilege conferred upon the Postmaster-General by the Telegraph Acts 1863 to 1904.

Limits of
deviation.

7. In the construction of the works by this Act authorised the Corporation may deviate laterally to any extent not exceeding the limits of deviation shown on the deposited plans and where on any road no such limits are shown the boundaries

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7. In the construction of the works by this Act authorised the Corporation may deviate laterally to any extent not exceeding the limits of deviation shown on the deposited plans and where on any road no such limits are shown the boundaries

of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent downwards but not exceeding five feet upwards. Provided that except for the purpose of crossing over a stream no part of the pipes shall be raised above the surface of the ground unless except so far as is shown on the deposited sections. A.D. 1905.

8. If the works authorised by this Part of this Act are not completed within six years from the passing of this Act then on the expiration of that period the powers by this Act granted for the making thereof or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed. Provided that the Corporation may extend enlarge alter reconstruct renew or remove any of their water-works and plant and in the case of the conduit or line of pipes authorised by this Act lay down additional lines of pipes as and when occasion may require. Period for completion of water-works.

9. The works by this Part of this Act authorised shall for all purposes be deemed part of the water undertaking and the provisions of the Mansfield Corporation Act 1901 so far as the same are applicable and subject to the provisions of this Act shall extend and apply to the said works. Works to form part of undertaking.

10. From and after the passing of this Act the limits for the supply of water by the Corporation shall be the borough and the parish or township of Clipstone and the provisions of the Act of 1901 and of this Act so far as they relate to the water undertaking shall apply within the limits of supply as so extended. Extension of limits of supply.

11. If at any time after the expiration of six years from the commencement of this Act the Corporation are not furnishing or prepared on demand to furnish a sufficient supply of water in accordance with the provisions of this Act in any part of the district of any local authority within the limits of supply as extended by this Act the local authority of such district may provide a supply in the whole or any part of their district within the limits of supply in accordance with the provisions of the Public Health Act 1875 or any company body or person may apply for an Act of Parliament or Provisional Order for the purpose of supplying water in any part of such district not sufficiently supplied by the Corporation as if in either case this Act had not passed. Power to local authority &c. to supply water in case Corporation fails to supply.

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10. From and after the passing of this Act the limits for the supply of water by the Corporation shall be the borough and the parish or township of Clipstone and the provisions of the Act of 1901 and of this Act so far as they relate to the water undertaking shall apply within the limits of supply as so extended.

Extension of
limits of
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11. If at any time after the expiration of six years from the commencement of this Act the Corporation are not furnishing or prepared on demand to furnish a sufficient supply of water in accordance with the provisions of this Act in any part of the district of any local authority within the limits of supply as extended by this Act the local authority of such district may provide a supply in the whole or any part of their district within the limits of supply in accordance with the provisions of the Public Health Act 1875 or any company body or person may apply for an Act of Parliament or Provisional Order for the purpose of supplying water in any part of such district not sufficiently supplied by the Corporation as if in either case this Act had not passed.

Power to
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A.D. 1905.
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If any difference shall arise between the Corporation and any such local authority company body or person as to the sufficiency of the supply of water in any part of such district such difference shall be settled by an arbitrator to be appointed on the application of either party by the Local Government Board.

Sale of plant
in added
area.

12. If at any time after the passing of this Act any local authority whose district is beyond the borough but as to the whole or any part thereof within the limits of the Corporation for the supply of water shall give not less than six months notice in writing to the Corporation of their desire to purchase such portion of the waterworks and plant of the Corporation as is contained within the district of any such local authority and shall obtain the consent of the Local Government Board to such purchase and shall apply to Parliament or the Local Government Board for power to purchase such portion of the waterworks and plant of the Corporation (except the mains and pipes or other waterworks or apparatus which shall be necessary for supplying with water any other part of the limits of the Corporation for the supply of water) and to supply water within such district then it shall not be lawful for the Corporation to oppose such application (except as to the details thereof) and if such powers of purchase and supply be granted the Corporation shall sell and such local authority shall purchase the portion of the waterworks and plant of the Corporation (except as aforesaid) within the district of such local authority at such price being a sum in gross and upon such terms and conditions as shall be fixed in default of agreement by arbitration under the provisions of the Lands Clauses Acts Any such purchase shall be deemed to be a purpose of the Public Health Act 1875 except so far as the same may be otherwise provided for by Parliament and the Corporation shall apply the proceeds of any sale under this section in the same manner as they are required to apply money received from sales of land under this Act Provided that after the completion of such purchase all obligations on the part of the Corporation to supply water within the district of the purchasing authority or such portion thereof as is within the added area shall cease and determine.

Power to
take waters.

13. Subject to the provisions of this Act the Corporation may raise collect impound take use divert and appropriate for

A.D. 1905.

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Power to
take waters.

13. Subject to the provisions of this Act the Corporation may raise collect impound take use divert and appropriate for

the purposes of their water undertaking all such springs streams and waters as will or may be intercepted by the works by this Part of this Act authorised.

A.D. 1905.

14.—(1) For the purpose of executing any necessary work of repair or of cleansing or of examining any conduit or line of pipes by this Act authorised the Corporation may cause the water in any such conduit or line of pipes to be temporarily discharged into any available stream or watercourse.

Power for
repair of
conduits and
temporary
discharge of
water into
streams.

(2) In the exercise of the power conferred by this section the Corporation shall do as little damage as may be and shall make full compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by arbitration under and pursuant to the provisions of the Arbitration Act 1889.

15. Notwithstanding anything contained in section 146 of the Act of 1901 the Corporation in addition to any other powers for the time being vested in them shall have the powers of a local authority under section 54 of the Public Health Act 1875 with respect to the carrying of water mains within and without their district Provided that in the exercise of such powers the Corporation shall be subject to the provisions of the Public Health Acts so far as they are applicable (other than the provisions relating to the borrowing of money and to the repayment thereof) in the same manner and to the same extent as if such powers were conferred by those Acts.

Power to
lay mains
within and
without
borough.

16. The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets shall apply with the necessary modifications to the construction laying down erection and maintenance in any streets or roads (whether within or without the limits of the Corporation for the supply of water) of the conduits authorised by this Act and of any discharge pipes telephone or telegraph posts wires conductors or apparatus which the Corporation may and which they are hereby authorised to erect or lay down for the purposes of their water undertaking.

Application
of Water-
works
Clauses Act
1847 to
conduits
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17. For the protection of the Warsop Urban District Council (in this section called "the Warsop Council") the following provisions shall notwithstanding anything in this Act contained apply and have effect unless otherwise agreed on

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A.D. 1905. in writing between the Warsop Council and the Corporation
(that is to say) :—

- (1) The Corporation shall not directly or indirectly sink construct or use any well tunnel adit pumping station or other work for collecting impounding taking using diverting appropriating or pumping water within a radius of one and three-quarter miles from the existing well and pumping station of the Warsop Council situate at Bradmer Hill and the Warsop Council shall not if the Clipstone Pumping Station (Work No. 1) by this Act authorised is constructed and used by the Corporation directly or indirectly sink construct or use any well tunnel adit pumping station or other work for collecting impounding taking using diverting appropriating or pumping water within a radius of one and three-quarter miles from the said Clipstone Pumping Station :
- (2) If and whenever there shall be any deficiency or diminution of the supply of water in or obtainable from the well of the Warsop Council at Bradmer Hill required or desirable for the purpose of supplying the parish and urban district of Warsop the Corporation shall with all reasonable speed after receiving a request in writing so to do from the Warsop Council supply to the Warsop Council such a quantity of water to make good such deficiency or diminution not exceeding one hundred and seventy-five thousand gallons in any one day of twenty-four hours as the Warsop Council may from time to time require Provided always that if and whenever the quantity of water in or obtainable from the said well at Bradmer Hill falls below fifty thousand gallons in any one day of twenty-four hours then the Corporation shall with all reasonable speed after receiving a request in writing so to do from the Warsop Council supply to the Warsop Council such a quantity of water not exceeding one hundred and seventy-five thousand gallons in any one day of twenty-four hours as the Warsop Council may from time to time require but the Corporation may in that event require the Warsop Council to continue to pump under the direction of the Corporation such quantity of water

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as the said well will yield the Corporation paying to the Warsop Council all expenses occasioned by such pumping or incidental thereto or connected therewith and any water suitable for domestic purposes thus obtained from the said well shall be accepted by the Warsop Council as part of the quantity of water to be supplied by the Corporation under this section Provided also that any water supplied by the Corporation to the Warsop Council under this section shall be for use only within the parish and urban district of Warsop :

- (3) The Corporation shall supply the water to be supplied by them as aforesaid so far as reasonably practicable at such time or times during the day as the Warsop Council may demand and the Corporation shall only be entitled to charge the Warsop Council and the Warsop Council shall pay for any such water so supplied as aforesaid at such a price per thousand gallons as shall not exceed the average cost to the Warsop Council per thousand gallons of raising water from their said well at Bradmer Hill (including the cost of ordinary repairs and ordinary maintenance but excluding all payments for sinking fund or interest or otherwise in respect of capital expenditure and for establishment charges) during the period of twelve months preceding the date when such deficiency or diminution shall have first occurred and in addition thereto such a sum as shall be equivalent to thirty-three and one-third per centum of such average cost Such supply of water shall be delivered by the Corporation into the reservoir of the Warsop Council at Bradmer Hill and the Corporation shall be under obligation to afford such supply so long only as such deficiency or diminution exists The Corporation shall at their own expense lay down and maintain all mains pipes and meters and carry out and maintain all works necessary to deliver such supply of water from their authorised works at Clipstone or elsewhere into the said reservoir at Bradmer Hill :

- (4) It shall not be obligatory on the Warsop Council to show that such deficiency or diminution of water as

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- (4) It shall not be obligatory on the Warsop Council to show that such deficiency or diminution of water as

A.D. 1905.

aforesaid has been or is being caused by the exercise by the Corporation of the powers conferred upon them by this Act but on the other hand it shall be competent for the Corporation to show that such deficiency or diminution has not been caused by the exercise of such powers and if the Corporation show that such deficiency or diminution has not been so caused then the Corporation shall not be obliged to afford or to continue to afford such supply until such deficiency or diminution as aforesaid again occurs :

- (5) The accounts relating to any supply of water given by the Corporation to the Warsop Council under the provisions of this section shall be made up quarterly to the thirty-first day of March the thirtieth day of June the thirtieth day of September and the thirty-first day of December in each year and the amount due for the quarter's supply shall be paid by the Warsop Council to the Corporation within one month from the delivery to the Warsop Council of each such account :
- (6) The Warsop Council shall at the request in writing of the Corporation give to the Corporation all information in their possession with regard to the quantities of water which the well of the Warsop Council at Bradmer Hill has yielded at any time previous to the construction of the Clipstone pumping station and shall also afford to the Corporation all reasonable assistance and facilities to enable them to ascertain the yield of the said well before and during the construction of the Clipstone pumping station and at any time subsequent thereto and the cause of any deficiency or diminution in such yield and the Corporation shall pay to the Warsop Council any proper expense which the Warsop Council may be put to in giving such information assistance or facilities :
- (7) Any dispute or difference which may from time to time arise between the Corporation and the Warsop Council under any of the provisions of this section shall be determined by an arbitrator to be agreed upon between the parties or failing agreement to be appointed on the application of either party by the

A.D. 1905.

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President for the time being of the Institution of Civil Engineers and the Arbitration Act 1889 and any statutory modification thereof shall apply to any such arbitration. A.D. 1905.

18. The agreement dated the twenty-first day of October one thousand nine hundred and four and made between Frederick John Turner as agent for and on behalf of the Most Noble William John Arthur Charles James Duke of Portland K.G. of the one part and the Corporation of the other part as set forth in the First Schedule to this Act is hereby confirmed and made binding on the parties thereto respectively and upon the sequels in title of the said Duke. Confirmation of scheduled agreement.

PART III.

LANDS.

19. Subject to the provisions of this Act the Corporation may enter upon take and use all or any part of the lands delineated on the deposited plans and described in the deposited book of reference which they may require for the purposes of this Act. Power to acquire lands.

20. The powers of the Corporation for the compulsory purchase of lands under this Act shall not be exercised after the expiration of three years from the passing of this Act. Period for compulsory purchase of lands.

21. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county of Nottingham for the correction thereof and if it appear to the justices that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the said county and a duplicate thereof shall also be deposited with the clerk of the council of the district or parish in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same Correction of errors &c. in deposited plans and book of reference.

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A.D. 1905. relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with such certificate.

Power to
acquire ease-
ment only.

22.—(1) The Corporation may in lieu of acquiring any lands for the purpose of the works authorised by this Act acquire such easements and rights in such lands as they may require for the purpose of making maintaining using cleansing repairing renewing and enlarging the said works and of obtaining access thereto and may give notice to treat in respect of such easements and rights and may in such notice describe the nature thereof and the several provisions of the Lands Clauses Acts (inclusive of those with regard to limited owners and to arbitration and the summoning of a jury) shall apply to such easements and rights as fully as if the same were lands within the meaning of those Acts.

(2) Provided that as regards any lands taken or used by the Corporation for the purpose of such works where they are respectively laid underground the Corporation shall not (unless they give notice to treat for such lands and not merely for easements or rights therein) be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall at all times after the completion of the works have the same rights of passing over such lands for all purposes of or connected with the use or enjoyment of the adjoining lands as if such lands had not been taken or used by the Corporation.

(3) Provided also that except as to land forming part of a street whether dedicated to the public use or not nothing in this section contained shall authorise the Corporation to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Corporation to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision.

Persons
under dis-
ability may
grant ease-
ments &c.

23. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this

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Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. A.D. 1905.

24. The Corporation on selling any lands acquired by them in connexion with their water undertaking and not required for the purposes of that undertaking may reserve to themselves all or any part of the water rights or other easements belonging thereto and may make the sale subject to such reservations accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to the use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit. Reservation of water rights &c. on sale.

25. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Corporation may retain hold and use for such time as they may think fit and may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest in lands acquired by them under this Act and may sell exchange or dispose of any rents reserved on the sale exchange lease or disposition of such lands and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange. Power to retain sell &c. lands.

26. So long as any lands remain to be acquired by the Corporation under the authority of this Act they may so far as they consider necessary apply moneys (being capital or in the nature of capital) received by them on any such sale lease exchange or disposition as aforesaid in the purchase of lands so remaining to be acquired but as to moneys so received and not so applied the Corporation shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment by this Act provided except to such extent and upon such terms Proceeds of sale of surplus lands.

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A.D. 1905. — as may be approved by the Local Government Board Provided that the amount to be applied in the purchase of land under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by this Act for the acquisition of such lands Provided further that the borrowing powers by this Act authorised for the acquisition of such lands shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

PART IV.

STREETS BUILDINGS AND SEWERS.

Approval of
plan to be
void after
certain inter-
vals.

27. The approval by the Corporation of any plan or section of any street or building and the notice of intention to lay out or construct such street or building shall be null and void if the execution of the work specified in such plan or section be not commenced within the following periods (that is to say) :—

As to plans or sections approved after the passing of this Act within two years from the date of such approval ;

As to plans or sections approved before the passing of this Act within two years from the passing of this Act ;

and at the expiration of those respective periods fresh notice and deposit and approval shall unless the Corporation otherwise determine be requisite.

The Corporation shall give notice of the provisions of this section to every person intending to lay out a new street or erect a new building the plans for which shall have been approved before the passing of this Act but the laying out of which street or erection of which building shall not have been commenced and shall attach a similar notice to every approval of plans given subsequent to the passing of this Act.

Height of
buildings.

28. No new building shall without the approval of the Corporation be erected on the side of any street which shall exceed in height the distance from the front of such building to the opposite side of such street nor shall the height of any building at any time erected on the side of any street be at any time subsequently increased without such approval as aforesaid so as to exceed such distance Provided that the approval of the Corporation shall not in the case of rebuilding any building existing at the passing of this Act be withheld so as to involve a material sacrifice of property In determining

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the height of any building the measurement shall be taken from the level of the centre of the street immediately opposite the centre of the front of the building up to the top of the eaves of the roof or in the case of a flat roof to the top of the parapet facing the street. In case of a gable facing the street the measurement shall be to a point halfway between the level of the eaves and the ridge. In case of a roof which slopes away from the street at any greater angle to the horizon than fifty degrees the measurement shall be to the ridge of the roof and not to the eaves. Provided that where any new building shall front to two or more streets the height of such new building shall be determined according to the width of the widest of such streets.

A.D. 1905.

29. With respect to the height of chimneys the following provisions shall have effect (that is to say) :—

Height of chimneys.

(1) Every chimney hereafter erected for carrying smoke or steam or for the conveying away of any noisome or deleterious gases or effluvia from any mill factory brewery sizing-house dye-house corn-mill foundry or building used for manufacturing or other purposes shall be raised to such height measured from the level of the centre of the street thereto as the Corporation shall reasonably approve having regard to the use of such chimney the position of dwelling-houses or other buildings thereto the description of such buildings the levels of the neighbouring ground and any other condition requisite for consideration in determining such height :

(2) Any person who shall offend against any provision of this or the preceding section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

30. In case any building is after the passing of this Act erected or raised to a greater height than any adjoining building and any flues or chimneys of such adjoining building are in the outer or party wall or against the building so erected or raised the person erecting or raising such building shall at his own expense build up those flues and chimneys so that the top thereof may be of the same height as the top of the chimneys of the building so erected or raised. Any person who shall offend against the provisions of this section shall be liable to a penalty

Erection of buildings to greater height than adjoining buildings.

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30. In case any building is after the passing of this Act erected or raised to a greater height than any adjoining building and any flues or chimneys of such adjoining building are in the outer or party wall or against the building so erected or raised the person erecting or raising such building shall at his own expense build up those flues and chimneys so that the top thereof may be of the same height as the top of the chimneys of the building so erected or raised. Any person who shall offend against the provisions of this section shall be liable to a penalty

Erection of buildings to greater height than adjoining buildings.

A.D. 1905. not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Prohibiting
deposit of
building
materials on
and excava-
tions in
streets.

31. It shall not be lawful for any person without the consent of the Corporation in writing first obtained to lay any building materials rubbish or other thing or make any excavation on or in any street and when with such consent any person lays any building materials rubbish or other thing or makes any excavation on or in any street he shall at his own expense cause the same to be sufficiently fenced and a sufficient light to be fixed in a proper place on or near the same and to be continued every night from sunset to sunrise and shall remove such materials rubbish or thing or fill up such excavation (as the case may be) when required by the Corporation and if any person fails to comply in any respects with the requirements of this enactment he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may remove any such materials rubbish or thing or fill up such excavation (as the case may be) and recover the expenses from the offender summarily as a civil debt.

Elevation of
buildings
erected on
front land to
be subject to
approval of
Corporation.

32. All buildings or parts of buildings which may in future be erected on the site of any building or any land which site or land in consequence of any improvement made by the Corporation becomes front land shall be erected according to such elevation as the Corporation reasonably approve and if the owner lessee or occupier of any building or land which on the making of any such improvement acquires a frontage to the street makes any door or entrance opening upon or communicating with the street or any wall or fence by the side of the street every such owner lessee or occupier shall make the building wall or fence in a line and the elevation thereof fronting to or towards the street in accordance with a plan approved by the Corporation and in case the Corporation for the space of six weeks after any plan or drawing of such elevation is submitted to them neglect to notify their determination in writing with reference thereto they shall be deemed to have approved thereof Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings The Corporation shall make compensation to the owner of any building or land for any loss or damage he may suffer by reason of the setting back or bringing forward of such building wall or fence in pursuance of any requirement of the Corporation.

A.D. 1905. not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

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tions in
streets.

31. It shall not be lawful for any person without the consent of the Corporation in writing first obtained to lay any building materials rubbish or other thing or make any excavation on or in any street and when with such consent any person lays any building materials rubbish or other thing or makes any excavation on or in any street he shall at his own expense cause the same to be sufficiently fenced and a sufficient light to be fixed in a proper place on or near the same and to be continued every night from sunset to sunrise and shall remove such materials rubbish or thing or fill up such excavation (as the case may be) when required by the Corporation and if any person fails to comply in any respects with the requirements of this enactment he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may remove any such materials rubbish or thing or fill up such excavation (as the case may be) and recover the expenses from the offender summarily as a civil debt.

Elevation of
buildings
erected on
front land to
be subject to
approval of
Corporation.

32. All buildings or parts of buildings which may in future be erected on the site of any building or any land which site or land in consequence of any improvement made by the Corporation becomes front land shall be erected according to such elevation as the Corporation reasonably approve and if the owner lessee or occupier of any building or land which on the making of any such improvement acquires a frontage to the street makes any door or entrance opening upon or communicating with the street or any wall or fence by the side of the street every such owner lessee or occupier shall make the building wall or fence in a line and the elevation thereof fronting to or towards the street in accordance with a plan approved by the Corporation and in case the Corporation for the space of six weeks after any plan or drawing of such elevation is submitted to them neglect to notify their determination in writing with reference thereto they shall be deemed to have approved thereof Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings The Corporation shall make compensation to the owner of any building or land for any loss or damage he may suffer by reason of the setting back or bringing forward of such building wall or fence in pursuance of any requirement of the Corporation.

33.—(1) Before any person erects or sets up any temporary or movable building he shall apply to the Corporation for permission so to do and such application shall be accompanied by a plan and sections of the proposed building drawn to a scale of not less than one inch to every eight feet and a block plan drawn to a convenient scale showing the intended situation and surroundings of the proposed building together with a specification describing the materials proposed to be used in the construction thereof and the purpose for which the building is intended.

A.D. 1905.
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As to temporary and movable buildings.

(2) The Corporation shall within six weeks after the delivery of the plan and sections and specification signify in writing their approval or disapproval of the intended building to the person proposing to erect or set up the same.

(3) The Corporation may attach to their approval any condition which they may deem proper with regard to the sanitary arrangements of such building the ingress thereto and the egress therefrom protection against fire and the period during which such building shall be allowed to stand.

(4) If any such building is commenced erected or set up without such application accompanied by such plan sections and specification or after the disapproval of the Corporation or before the expiration of six weeks without such approval or is in any respect not in conformity with any condition attached by the Corporation to their approval the person who commenced erected or set up such building or if any such building is not removed within the period allowed by the Corporation or any prolongation thereof the owner of such building shall be liable to a penalty for every such offence not exceeding forty shillings and to a daily penalty of the like amount and the Corporation may cause such building to be pulled down or removed and any expense incurred by them in or about the pulling down or removal of the building may be recovered in a summary manner from the owner of the building or from the person erecting or setting up the same at their discretion.

(5) The following buildings and works shall be exempt from the operation of this section :—

(A) Buildings expressly exempt from the operation of the Acts or byelaws for the time being in force within the borough in respect to new buildings and any tent not remaining for more than seven days ;

33.—(1) Before any person erects or sets up any temporary or movable building he shall apply to the Corporation for permission so to do and such application shall be accompanied by a plan and sections of the proposed building drawn to a scale of not less than one inch to every eight feet and a block plan drawn to a convenient scale showing the intended situation and surroundings of the proposed building together with a specification describing the materials proposed to be used in the construction thereof and the purpose for which the building is intended.

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(A) Buildings expressly exempt from the operation of the Acts or byelaws for the time being in force within the borough in respect to new buildings and any tent not remaining for more than seven days ;

A.D. 1905.

- (B) Any wooden or other structure or erection of a movable or temporary character erected or set up for use during the construction alteration or repair of any building but such structure or erection shall be pulled down or removed immediately after the completion of such construction alteration or repair and if not so taken down or removed the Corporation may cause the same to be pulled down or removed and any expense incurred by them in or about the pulling down or removal of the building may be recovered in a summary manner from the owner of the building or from the person erecting or setting up the same at their discretion ; and
- (c) Any wooden or other structure or erection erected or set up for the purpose of protecting or of preventing the acquisition of right of light.

Power to sell
materials of
temporary
buildings.

34. Where a temporary or other building referred to in the last preceding section is taken down or removed by the Corporation under the powers of this Part of this Act the Corporation may sell the materials thereof or any part of them and shall apply the proceeds of the sale in or towards payment of the costs and expenses incurred by them in relation to such building and to the sale of the materials thereof and shall pay the balance thereof to the owner of such building.

Corporation
may require
enlarged
sewer.

35. If in any new streets the Corporation for the purpose of main drainage or otherwise shall require a larger sewer or drain to be made than they consider necessary for the ordinary sewerage or drainage of such new street the person laying out such new street shall construct such enlarged sewer or drain in accordance with the requirement of the Corporation and the additional cost thereof as ascertained by the surveyor shall be paid by the Corporation.

Dangerous
places to be
repaired or
inclosed.

36. With respect to the repairing or inclosing of dangerous places the following provisions shall have effect (namely) :—

- (1) If any building wall fence steps structure or other thing or any well excavation reservoir pond stream dam or bank is for want of sufficient repair protection or inclosure dangerous to the passengers along any street or footpath the Corporation may order the owner within the period specified in such order to repair remove protect or inclose the same so as to prevent any danger therefrom :

A.D. 1905.

- (B) Any wooden or other structure or erection of a movable or temporary character erected or set up for use during the construction alteration or repair of any building but such structure or erection shall be pulled down or removed immediately after the completion of such construction alteration or repair and if not so taken down or removed the Corporation may cause the same to be pulled down or removed and any expense incurred by them in or about the pulling down or removal of the building may be recovered in a summary manner from the owner of the building or from the person erecting or setting up the same at their discretion ; and
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(2) If after service of the order on the owner he shall neglect to comply with the requirements thereof within the prescribed period the Corporation may cause such works as they think proper to be done for effecting such repair removal protection or inclosure and the expenses thereof shall be payable by the owner and may be recovered summarily. A.D. 1905.

37.—(1) In cases where urgent repairs are required to any street not being a highway repairable by the inhabitants at large and where for want of such repairs danger exists to passengers or vehicles in such street the Corporation may give notice in writing to the owners of the premises fronting adjoining or abutting on such parts thereof as may require such repairs requiring them to execute such repairs within a time to be specified in such notice. As to urgent repairs to private streets:

(2) If within such reasonable time as the Corporation may in such notice have specified the repairs are not executed the Corporation may execute the repairs and may recover the costs of so doing from the owner or owners in default or if there be more than one owner in proportion to frontage summarily as a civil debt.

(3) If the Corporation are unable to discover the name or abode of any owner the Corporation may execute such repairs without having served upon him any notice.

38. Whenever the person erecting any building shall be desirous of leaving an opening or of placing any steps or other projection in any forecourt area or space left in front of such building such forecourt area or space shall if required by the Corporation be well and sufficiently fenced off from the footpath or street by a railing parapet or dwarf wall or otherwise and any person who shall offend against this enactment shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings. Forecourts to be fenced off from streets.

PART V.

SANITARY PROVISIONS.

39. The powers conferred by section 41 of the Public Health Act 1875 upon the Corporation to empower the surveyor and inspector of nuisances to enter premises for the purposes therein mentioned shall extend to authorise the Corporation if Extension of section 41 of Public Health Act 1875.

(2) If after service of the order on the owner he shall neglect to comply with the requirements thereof within the prescribed period the Corporation may cause such works as they think proper to be done for effecting such repair removal protection or inclosure and the expenses thereof shall be payable by the owner and may be recovered summarily. A.D. 1905.

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A.D. 1905. on the report of either of such officers it shall appear that they have reason to suspect that any drain watercloset earthcloset privy ashpit or cesspool is in a condition in which it is a nuisance or injurious to health or likely to become so to empower the surveyor or inspector of nuisances after twenty-four hours notice to the occupier of such premises or in case of emergency without notice to enter such premises and to act in accordance with the provisions of the said section as if such written application had been made as therein mentioned.

Provision in lieu of section 19 of Public Health Acts (Amendment) Act 1890.

40.—(1) Where two or more houses or premises are connected with a single private drain which conveys their drainage into a public sewer the Corporation shall have all the powers conferred by section 41 of the Public Health Act 1875 and the Corporation may recover any expenses incurred by them in executing any works under the powers conferred on them by that section from the owners of the houses in such proportions as shall be settled by the surveyor or (in case of dispute) by arbitration under the Public Health Act 1875 or by a court of summary jurisdiction and such expenses shall be recoverable summarily as a civil debt or the Corporation may declare them to be private improvement expenses and may recover them accordingly.

(2) Section 19 of the Public Health Acts (Amendment) Act 1890 shall cease to be in force within the borough.

(3) For the purposes of this section the expression "drain" includes any sewer or drain whether constructed before or after the passing of this Act with which two or more houses or premises (whether belonging to the same or different owners) are at the date of the passing of this Act or may at any time hereafter be connected or which is used or capable of being or intended to be used for the conveyance of the drainage of such houses or premises directly or by means of any other sewer or drain to any public sewer situate under a street repairable by the inhabitants at large but shall not include any sewer which has been constructed to the satisfaction of the Corporation under section 152 of the Public Health Act 1875 or of any sewer which has been constructed by the Corporation for the effectual drainage of the borough.

Rain-water pipes not to be used as soil pipes.

41. No pipes used for the carrying off of rain-water from any roof shall be used for the purpose of carrying off the soil or drainage from any privy or watercloset Any person who

A.D. 1905. on the report of either of such officers it shall appear that they have reason to suspect that any drain watercloset earthcloset privy ashpit or cesspool is in a condition in which it is a nuisance or injurious to health or likely to become so to empower the surveyor or inspector of nuisances after twenty-four hours notice to the occupier of such premises or in case of emergency without notice to enter such premises and to act in accordance with the provisions of the said section as if such written application had been made as therein mentioned.

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shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings. A.D. 1905.

42. No water-pipe stackpipe or down-spout in existence at the date of the passing of this Act used for conveying surface water from any premises shall be used or be permitted to serve or to act as a ventilating shaft to any drain. Any person who shall offend against this section after fourteen days from the service upon him by the Corporation of notice of such offence shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Water or stack pipes not to be used as ventilating shafts.

43. The soil-pipes of the waterclosets within houses and buildings shall be properly ventilated by means of a pipe carried up therefrom or by some other efficient method and any owner or occupier of a house or building who shall neglect or fail to comply with the provisions of this section for a period of twenty-eight days after notice in writing from the Corporation requiring him to comply therewith shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Soil-pipes to be ventilated.

44. The Corporation may by notice in writing require the owner or occupier of any dwelling-house to provide galvanised iron dustbins in lieu of ashpits and such bins shall be of such size and construction as may be approved by the Corporation and any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Corporation shall for every such offence be subject to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings. Provided that this section shall not apply to any dustbins or ashpits in use at the commencement of this Act so long as the same are of suitable size and construction and in proper order and condition.

Regulation dust bins.

45. If it appear to the Corporation that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of such houses the Corporation may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Corporation if they so decide or by the owners in such manner as the

Corporation may order houses to be drained by a combined operation

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Corporation may order houses to be drained by a combined operation

A.D. 1905.

Corporation shall direct and the costs and expenses of such combined drain and of the repair and maintenance thereof shall be apportioned between the owners of such houses in such manner as the Corporation shall determine and if such drain is constructed by the Corporation such costs and expenses may be recovered by the Corporation from such owners summarily as a civil debt. Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer. Provided that the Corporation shall not exercise the powers conferred by this section in respect of any house plans for the drainage of which shall have been previously approved by the Corporation.

Corporation may require old drains to be laid open for examination by surveyor before communicating with sewers.

46. Before any drain existing at the passing of this Act and then not communicating with any sewer of the Corporation shall be made to communicate with any sewer of the Corporation the Corporation may require the same to be laid open for examination by the surveyor and no such communication shall be made until the surveyor shall certify that such drain may be properly made to communicate with such sewer.

Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Power of entry.

47. The provisions of section 102 (Power of entry of local authority) and section 103 (Penalty for disobedience of order) of the Public Health Act 1875 shall extend and apply to the purposes of this Part of this Act as if those purposes had been mentioned in the said section 102.

PART VI.

INFECTIOUS DISEASE &c.

Penalty on guardian permitting infected child to attend school.

48. No person being the parent or having the care or charge of a child who is or has been suffering from infectious disease shall after a notice from the medical officer that the child is not to be sent to school permit such child to attend school without having first procured from the medical officer a certificate (which shall be granted free of charge upon application) that in his opinion such child may attend without undue risk of communicating such disease to others. If any person offends against this enactment he shall be liable to a penalty not exceeding forty shillings.

A.D. 1905.

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49. Whenever any scholar who attends any school within the borough shall be suffering from any infectious disease the principal or person in charge of such school or (if such school is divided into separate departments and there is no principal or person in charge of the whole school) the person in charge of the department which such scholar attends shall forthwith on becoming aware of the fact send notice thereof to the medical officer and shall furnish to the Corporation at their request a list of the scholars attending thereat together with their addresses and in default thereof shall be liable to a penalty not exceeding forty shillings. The Corporation shall pay to the person furnishing any such list as aforesaid for such list the sum of sixpence and after the rate of sixpence for every twenty-five scholars named therein.

A.D. 1905.

Principals of schools to furnish lists of scholars.

50. The medical officer may enter any public elementary school within the borough at all reasonable times and examine the scholars attending the same and may exclude from attendance thereat for such period as he shall consider requisite any scholar who in his opinion is suffering from infectious disease or is likely to spread infection.

Power to medical officer to examine school-children.

The medical officer shall upon the exclusion of any scholar in manner aforesaid give notice thereof in writing to the principal or person in charge of such school or (if such school is divided into separate departments and there is no principal or person in charge of the whole school) the person in charge of the department which such scholar attends and shall send a copy of such notice to the parent or guardian of the scholar.

Any person who shall obstruct the medical officer in carrying into effect the provisions of this section or who shall permit any scholar to attend school after he shall have been excluded as aforesaid and before the expiration of the period of exclusion shall be liable to a penalty not exceeding forty shillings.

51. Any person taking or sending to any public wash-house or to any person for the purpose of being washed or mangled any bedding clothing or other things which to his knowledge have been exposed to infection from infectious disease shall previously to so taking or sending the same cause such bedding clothing or other things to be disinfected by the Corporation or to the satisfaction of the medical officer and in default shall be liable to a penalty not exceeding forty shillings and the Corporation shall make provision for disinfecting and shall on

Disinfection of clothes.

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Disinfection of clothes.

A.D. 1905. application disinfect at their expense such bedding clothing and other things.

Filthy and dangerous articles to be purified.

52.—(1) Where on the certificate of the medical officer it appears to the Corporation that any articles in any house or part thereof are in such filthy and dangerous or unwholesome condition that health is affected or endangered thereby or that the cleansing or purifying or destroying of any such articles is requisite to prevent risk of or to check infectious disease the Corporation may if they think fit cause any such articles in any such house or part thereof to be at their own expense cleansed or purified or they may destroy the same.

(2) If any owner suffer any unnecessary damage the Corporation shall compensate him for the same and the Corporation shall also reasonably compensate the owner for any articles destroyed.

Notice and execution of provisions of this Part of this Act.

53. The Corporation shall cause public notice to be given of the effect of the provisions of this Part of this Act by advertisement in a local newspaper and by handbills or otherwise in such manner as they think sufficient and this Part of this Act shall come into operation at such time not being less than one month after the first publication of such an advertisement as aforesaid as the Corporation may fix.

PART VII.

SEWAGE LANDS.

Appropriation of land for sewage purposes.

54. The Corporation may appropriate and use for the treatment and disposal of sewage the lands described in Part I. of the Second Schedule to this Act and may construct and lay down on such lands all necessary and proper buildings engines pumps sewers tanks drains culverts channels and other sewage works Provided that in the exercise of the powers conferred upon the Corporation by this section the provisions of the Public Health Act 1875 shall apply as if the said lands had been acquired by the Corporation under that Act.

PART VIII.

TOWN HALL &c.

Power to improve &c. town hall &c.

55.—(1) The Corporation with the sanction of the Local Government Board may alter enlarge and improve the town hall and other adjoining properties belonging to the Corporation

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Filthy and dangerous articles to be purified.

52.—(1) Where on the certificate of the medical officer it appears to the Corporation that any articles in any house or part thereof are in such filthy and dangerous or unwholesome condition that health is affected or endangered thereby or that the cleansing or purifying or destroying of any such articles is requisite to prevent risk of or to check infectious disease the Corporation may if they think fit cause any such articles in any such house or part thereof to be at their own expense cleansed or purified or they may destroy the same.

(2) If any owner suffer any unnecessary damage the Corporation shall compensate him for the same and the Corporation shall also reasonably compensate the owner for any articles destroyed.

Notice and execution of provisions of this Part of this Act.

53. The Corporation shall cause public notice to be given of the effect of the provisions of this Part of this Act by advertisement in a local newspaper and by handbills or otherwise in such manner as they think sufficient and this Part of this Act shall come into operation at such time not being less than one month after the first publication of such an advertisement as aforesaid as the Corporation may fix.

PART VII.

SEWAGE LANDS.

Appropriation of land for sewage purposes.

54. The Corporation may appropriate and use for the treatment and disposal of sewage the lands described in Part I. of the Second Schedule to this Act and may construct and lay down on such lands all necessary and proper buildings engines pumps sewers tanks drains culverts channels and other sewage works Provided that in the exercise of the powers conferred upon the Corporation by this section the provisions of the Public Health Act 1875 shall apply as if the said lands had been acquired by the Corporation under that Act.

PART VIII.

TOWN HALL &c.

Power to improve &c. town hall &c.

55.—(1) The Corporation with the sanction of the Local Government Board may alter enlarge and improve the town hall and other adjoining properties belonging to the Corporation

or may pull down and remove the same and dispose of the materials thereof and may provide erect and maintain on the site thereof or some part thereof a new town hall public hall market post office arcade shops offices and any public or municipal buildings and may furnish and equip the same. A.D. 1905.

(2) The Corporation may let for any period not exceeding seven years any such buildings except the town hall upon such terms and conditions as they may think fit and may grant the use of or let with or without charge halls and rooms in the town hall and other municipal buildings for the purpose of any public meeting festival entertainment or other purpose approved by them.

PART IX.

MUSEUM.

56.—(1) The Corporation may by agreement but not otherwise acquire the lands described in Part II. of the Second Schedule to this Act and subject to the provisions of any such agreement may appropriate and use such lands for the purpose of a museum and may erect thereon and fit up and maintain and improve any buildings necessary for the maintenance or provision of such museum. Power to acquire and use lands and to increase rate for museum purposes.

(2) Notwithstanding anything to the contrary contained in section 10 of the Museums and Gymnasiums Act 1891 the amount which the Corporation may expend for museum purposes in any year shall be any sum not exceeding the amount produced by the rate of one penny in the pound Provided that the additional amount which the Corporation are by this section authorised to expend for museum purposes shall in the first place be applied if and so far as may be necessary for such purpose in or towards payment of the instalments of principal and interest or of the sinking fund and interest payable in respect of any sum which the Corporation shall borrow under the provisions of this Act for museum purposes.

PART X.

BANDS &c.

57. It shall be lawful for the Corporation from time to time— Power to provide bands band-stands and seats and to let chairs &c.

(1) To place or authorise any person to place and maintain seats shelters and chairs in or on any park garden inclosure pleasure ground or other public place for

or may pull down and remove the same and dispose of the materials thereof and may provide erect and maintain on the site thereof or some part thereof a new town hall public hall market post office arcade shops offices and any public or municipal buildings and may furnish and equip the same. A.D. 1905.

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A.D. 1905.

the use of the public and if they think fit to charge or allow such person or persons to charge a reasonable sum for the use of the chairs :

- (2) To provide place and maintain bandstands in or on any such park garden inclosure pleasure ground or other public place as the Corporation may deem suitable :
- (3) To employ manage and regulate the performances of a band of music to perform in any such park garden inclosure pleasure ground or other public place as the Corporation may from time to time prescribe or to pay or contribute towards the payment of a band of music Provided that the amount of such payments or contributions out of the district fund and general district rate for the purposes of this subsection shall not in any one year exceed the sum of fifty pounds :
- (4) To inclose an area in any park garden inclosure pleasure ground or other public place within which such band shall play and to charge for admission within the said inclosure :
- (5) To provide and sell or authorise any person or persons to sell programmes of any concert or performance which may from time to time be provided by the Corporation or with their sanction in or on such park garden inclosure pleasure ground or other public place :
- (6) To make byelaws for regulating the use of chairs and the charges for the same for preventing injury or damage to such chairs seats shelters and bandstands and for securing good and orderly conduct during the playing of such band or during such musical performance and to do all such acts as may be necessary to carry these provisions into effect :

Provided that this section shall not authorise the placing of a seat in any street so as to cause a substantial interference with the reasonable use thereof by the public or a nuisance to the owners or occupiers of premises in the vicinity thereof.

Expenses
and applica-
tion of
moneys
under this
Part of Act.

58. All expenses incurred by the Corporation in the exercise of the powers of this Part of this Act shall be paid out of the district fund and any moneys received by the Corporation in connexion with the execution of the purposes of this Part of this Act shall be carried to the credit of the district fund.

A.D. 1905.

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PART XI.

A.D. 1905.

FINANCE.

59.—(1) The Corporation may from time to time in addition to any moneys they are now authorised to borrow or which they may be authorised to borrow under the provisions of the Public Health Acts or any public general Act borrow at interest any sums not exceeding the following sums:—

Power to borrow.

On the security of the revenue of the water undertaking and the district fund and general district rate—

(A) For the purchase of land for and the construction of the waterworks by this Act authorised and otherwise in relation to their water undertaking the sum of forty thousand pounds:

On the security of the district fund and general district rate—

(B) For the purchase of land in connexion with the construction extension and improvement of sewage works the sum of six thousand pounds:

On the security of the borough fund and borough rate—

(C) Such sums as the Local Government Board may sanction for the purposes of the section of this Act of which the marginal note is "Power to improve &c. town hall &c.":

On the security of the borough fund and borough rate—

(D) For the purchase of land for and the erection and fitting up of a museum the sum of three thousand pounds:

On the security of the borough fund borough rate district fund and general district rate or any of them—

(E) For paying the costs charges and expenses of and in relation to this Act as herein-after defined the sum requisite for the purpose:

And with the consent of the Local Government Board such further moneys as may be necessary for any of the purposes of this Act.

(2) In calculating the sums which the Corporation may borrow under the provisions of any other enactment any sums

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A.D. 1905.

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(B) For the purchase of land in connexion with the construction extension and improvement of sewage works the sum of six thousand pounds:

On the security of the borough fund and borough rate—

(C) Such sums as the Local Government Board may sanction for the purposes of the section of this Act of which the marginal note is "Power to improve &c. town hall &c.":

On the security of the borough fund and borough rate—

(D) For the purchase of land for and the erection and fitting up of a museum the sum of three thousand pounds:

On the security of the borough fund borough rate district fund and general district rate or any of them—

(E) For paying the costs charges and expenses of and in relation to this Act as herein-after defined the sum requisite for the purpose:

And with the consent of the Local Government Board such further moneys as may be necessary for any of the purposes of this Act.

(2) In calculating the sums which the Corporation may borrow under the provisions of any other enactment any sums

A.D. 1905. they may borrow under this Act shall not be reckoned and the powers of the Corporation as to borrowing and re-borrowing under this Act shall not be restricted by any of the provisions of the Public Health Acts.

Appoint-
ment of
receiver.

60.—(1) Any mortgagee of the Corporation by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall not be less than one thousand pounds in the whole.

(2) The application for the appointment of a receiver shall be made to the High Court.

Periods for
payment of
money bor-
rowed.

61. The Corporation shall pay off all moneys borrowed by them under this Act within the respective periods following (that is to say):—

As to moneys borrowed for the purposes (A) mentioned in the section of this Act of which the marginal note is "Power to borrow" within forty-five years from the date or dates of borrowing the same ;

As to moneys borrowed for the purpose (B) mentioned in the said section within sixty years from the date or dates of borrowing the same ;

As to moneys borrowed for the purposes (D) mentioned in the said section within thirty years from the date or dates of borrowing the same ;

As to moneys borrowed for the purpose (E) mentioned in the said section within five years from the date of the passing of this Act ;

As to moneys borrowed with the sanction of the Local Government Board within such periods not exceeding sixty years as that Board may sanction.

Application
of sections
of Act of
1901 as to
borrowing.

62. The following sections of the Mansfield Corporation Act 1901 shall (with the necessary modifications and subject to the provisions of this Act) extend and apply mutatis mutandis to the moneys borrowed under this Act namely :—

Section 129 (Provisions of Public Health Act 1875 as to mortgages to apply) ;

Section 130 (Mode of raising money) ;

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Section 130 (Mode of raising money) ;

- Section 132 (Mode of payment off of money borrowed); A.D. 1905.
 Section 133 (Sinking fund);
 Section 134 (Protection of lender from inquiry);
 Section 135 (Corporation not to regard trusts);
 Section 136 (Saving existing charges);
 Section 138 (Power to re-borrow);
 Section 139 (Return respecting sinking fund to Local Government Board);
 Section 140 (Application of money borrowed);
 Section 145 (Inquiries by Local Government Board);
 Section 151 (Audit of accounts).

63. If the Corporation out of the proceeds of the sale or disposition of lands or other moneys received on capital account repay any principal moneys borrowed under the powers of this Act the payments to any sinking fund applicable to the repayment of such principal moneys may be reduced to such extent and upon such terms as may from time to time be approved by the Local Government Board.

Sinking fund may be adjusted in certain events.

PART XII.

MISCELLANEOUS.

64. For the protection of the Mansfield Woodhouse Urban District Council (herein-after in this section called "the council") the following provisions shall have effect unless otherwise agreed in writing between the Corporation and the council (that is to say):—

For protection of Mansfield Woodhouse Urban District Council.

(1) If the Corporation construct a pumping station at Clipstone under the powers of this Act the Corporation shall after the date on which they commence to supply water from such pumping station or after the thirty-first day of March one thousand nine hundred and seven (whichever date shall first happen) make an allowance to the council off the payments which may be due to the Corporation from the council for water under an agreement dated the second day of April one thousand eight hundred and ninety-seven or any modification of that agreement:

(2) In order to ascertain the amount of such allowance the net profits made by the Corporation in respect of

- Section 132 (Mode of payment off of money borrowed); A.D. 1905.
 Section 133 (Sinking fund);
 Section 134 (Protection of lender from inquiry);
 Section 135 (Corporation not to regard trusts);
 Section 136 (Saving existing charges);
 Section 138 (Power to re-borrow);
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A.D. 1905.

their water undertaking in each year ending on the thirty-first day of March after deducting all payments in respect of interest and sinking fund or repayment of principal but not deducting any payment properly chargeable to capital shall be calculated and the amount of the allowance shall be equal to one-third of a sum bearing the same proportion to the amount of the net profits so calculated as aforesaid as the amount of the payment by the council under any such agreement bears to the total gross receipts of the Corporation on account of their water undertaking in such year :

- (3) The amount of the allowance shall be ascertained as soon as reasonably possible after the thirty-first day of March in every year after such date as aforesaid and the allowance shall be made by way of four equal quarterly deductions from the payments due on the four succeeding quarter days under such agreement :
- (4) The Corporation shall render to the council in every year after such date as aforesaid all such accounts and shall give to them all such information as may be necessary for the purpose of enabling them to check the calculations made for the purposes of this section and for that purpose the council shall be at liberty to inspect the books and other documents of the Corporation :
- (5) If the Corporation construct new sewage disposal works under the powers of this Act the Corporation shall thereat treat the sewage from not more than five hundred houses erected or to be erected within that part of the district of the council which is shown on a map signed in duplicate by the Right Honourable Vesey Earl of Dartrey the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred and thereon coloured pink :
- (6) The council shall lay all necessary sewers to convey such sewage to such works of the Corporation and shall pay in each year to the Corporation such annual sum as from the date when the council's sewers are connected with such works as failing agreement may be determined by arbitration and in determining

A.D. 1905.

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such sum regard shall be had to the number and character of the houses and buildings drained to such works and to the capital expenditure incurred on such works by the Corporation and such sum shall be paid by the council to the Corporation within two months after the amount thereof shall have been ascertained:

A.D. 1905

- (7) If any difference shall arise between the council and the Corporation under this section it shall be determined by an arbitrator appointed (failing agreement) by the Local Government Board and the Arbitration Act 1889 or any statutory modification thereof for the time being in force shall apply to such arbitration.

65. All powers given to the Corporation by this Act (except in respect of the water undertaking and where otherwise by this Act expressly provided) shall be deemed to be in addition to and not in derogation of any other powers conferred on them by the Public Health Acts and such other powers may be exercised in the same manner as if this Act had not been passed Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence and provided that in cases where the provisions of this Act conflict with the provisions of the Public Health Acts the former shall prevail.

Powers of
Act cumulative.

66.—(1) Where any notice or demand under this Act requires authentication by the Corporation the signature of the town clerk or other duly authorised officer of the Corporation shall be sufficient authentication.

Authentica-
tion and
service of
notices &c.

(2) Notices demands orders and other documents required or authorised to be served under this Act may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

67. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and

Recovery of
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Recovery of
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A.D. 1905. expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Compensation &c. how to be determined.

68. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by the Public Health Acts.

Saving for indictments.

69. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of such matter from any penal or other consequences to which he would have been liable if such matter had not been made punishable by this Act. Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

As to byelaws.

70. All the provisions with respect to byelaws contained in sections 182 to 185 of the Public Health Act 1875 (except so much thereof as relates exclusively to byelaws of a rural sanitary authority) shall apply to all byelaws made by the Corporation under this Act.

Informations by whom to be laid.

71. Save as is hereby expressly provided all informations and complaints under and for the breach of any of the provisions of this Act or of any byelaws made thereunder may be laid and made by any officer of the Corporation duly authorised in that behalf or by the town clerk or by any police officer acting for or within the borough.

Evidence of appointments authority &c.

72. Where in any legal proceedings taken by or on behalf of the Corporation whether under this Act or under any general or local Act passed before or after this Act it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the Corporation or to prove any resolution of the Corporation or of any committee of the Corporation a certificate of such appointment authority or resolution purporting to be authenticated by the signature of the mayor or town clerk shall be *prima facie* evidence of such appointment authority or

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resolution without further proof of the holding of any meeting or the production of any minute book or other record or document. A.D. 1905.
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73. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding or revocation of any certificate licence consent or approval of or by the Corporation or of or by any officer or valuer of the Corporation or by any conviction or order made by a court of summary jurisdiction under any provision of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order the Corporation may in like manner appeal. As to appeal.

74. Where any damages expenses costs or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by a court of summary jurisdiction before whom any offender is convicted. Damages and charges to be settled by justices.

75. All penalties recovered by the Corporation or any officer of the Corporation on their behalf whether under this Act or any byelaw thereunder shall be paid to the treasurer and shall be carried by him to the credit of the district fund or to such other fund as the Corporation direct. Penalties to be paid over to treasurer.

76. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being a member of the Corporation or liable to any rate. Judges &c. not disqualified.

77. Nothing in this Act affects prejudicially any right power privilege or exemption of the Crown. Crown rights.

78. The costs charges and expenses preliminary to and of and incidental to preparing applying for and obtaining this Act shall after taxation by the taxing officer of the House of Lords or of the House of Commons be paid by the Corporation out of moneys to be borrowed by the Corporation under this Act but may in the first instance be paid by the Corporation out of any of their rates or funds and moneys so paid shall be recouped by and charged to the moneys to be borrowed under this Act. Expenses of Act.

resolution without further proof of the holding of any meeting or the production of any minute book or other record or document. A.D. 1905. —

73. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding or revocation of any certificate licence consent or approval of or by the Corporation or of or by any officer or valuer of the Corporation or by any conviction or order made by a court of summary jurisdiction under any provision of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order the Corporation may in like manner appeal. As to appeal.

74. Where any damages expenses costs or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by a court of summary jurisdiction before whom any offender is convicted. Damages and charges to be settled by justices.

75. All penalties recovered by the Corporation or any officer of the Corporation on their behalf whether under this Act or any byelaw thereunder shall be paid to the treasurer and shall be carried by him to the credit of the district fund or to such other fund as the Corporation direct. Penalties to be paid over to treasurer.

76. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being a member of the Corporation or liable to any rate. Judges &c. not disqualified.

77. Nothing in this Act affects prejudicially any right power privilege or exemption of the Crown. Crown rights.

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9. The Purchasers will construct all engines used by them with proper apparatus for prevention of smoke so far as is reasonably practicable and will use their best endeavours hereafter to keep down smoke and to prevent the same being a nuisance to the Vendor or his tenants.

10. The Purchasers shall complete all works and be in a position to commence the supply of water within four years from the date of these presents but in case of delay owing to any accidental breakdown or any similar unavoidable cause an application for one year's extension of time may be made to the agent for the time being of the Vendor who will give reasonable consideration to such application.

11. In addition to the 7000 gallons to be daily supplied free of expense to the Vendor as aforesaid the Purchasers shall supply at the point marked D on the said plan A any excess that may be required for the village or township of Clipstone and for the said farms and cottages at the price of sixpence per 1000 gallons provided that all water in excess of the said 7000 gallons required in the case of a fire shall be supplied free of cost as aforesaid. The obligation to supply water under this clause shall remain in force only so long as the Purchasers shall pump water for the purposes of their undertaking from the pumping station proposed to be constructed upon the said piece of land or any pumping station substituted therefor under this agreement. The conveyance shall contain covenants by the Purchasers to observe and fulfil the obligations intended to be imposed upon them by this agreement.

12. The Vendor shall not oppose the inclusion of the parish of Clipstone within the water limits of the Corporation of Mansfield aforesaid.

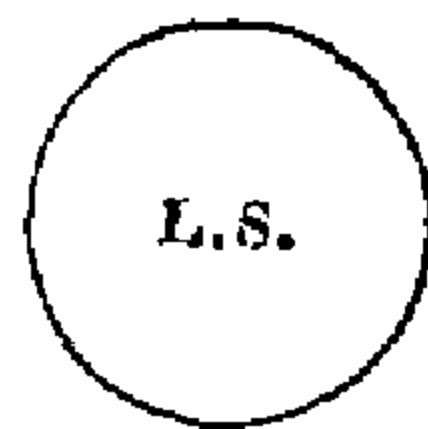
13. This agreement shall be conditional upon the Purchasers obtaining from Parliament the powers necessary to enable them to carry out the works herein-before referred to which powers the Purchasers undertake to use their best endeavours to obtain during the ensuing session of Parliament.

In witness whereof the said Frederick John Turner hath hereunto set his hand and the Purchasers have caused their common seal to be hereunto affixed the day and year first before written.

FRED. J. TURNER

As agent for and on behalf of the Duke of Portland.

The common seal of the mayor aldermen and burgesses of the borough of Mansfield was hereunto affixed in the presence of



J. E. ALCOCK Mayor.

JNO. HARROP WHITE Town Clerk.

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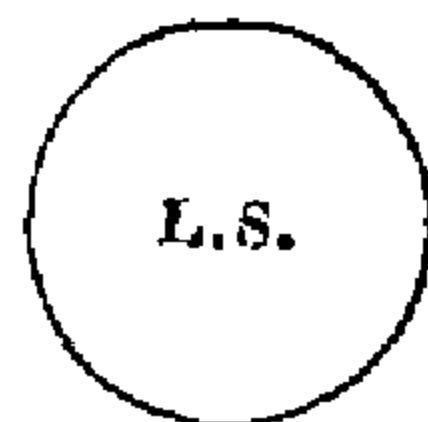
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J. E. ALCOCK Mayor.

JNO. HARROP WHITE Town Clerk.

SECOND SCHEDULE.

A.D. 1905.

PART I.

LANDS FOR SEWERAGE PURPOSES.

(A) Certain lands in the parish and borough of Mansfield belonging or reputed to belong to the Duke of Portland K.G. being the inclosures numbered 638 658 659 and 673 on the $\frac{1}{2500}$ Ordnance map for the parish of Mansfield Nottinghamshire Sheet XXIII. 13 (2nd edition 1899) containing $10\frac{1}{4}$ acres or thereabouts and bounded on the west by other property belonging or reputed to belong to the Duke of Portland K.G. G. J. Kirkland Mary Jowett Ann Skinner Joseph Reynolds Wood and Francis Hole on the east by the River Maun on the south by Bath Lane and on the north by the lands next herein-after described.

(B) Certain other lands in the parish and urban district of Mansfield Woodhouse belonging or reputed to belong to the Duke of Portland K.G. being the inclosures numbered 477 (part of) 521 522 (part of) 542 (part of) and 557 on the $\frac{1}{2500}$ Ordnance map for the parish of Mansfield Woodhouse Nottinghamshire Sheets XXIII. 9 and XXIII. 13 (2nd edition 1899) containing 20 acres or thereabouts and bounded on the west by other property belonging or reputed to belong to the Duke of Portland K.G. on the east by the River Maun on the south by the lands next herein-before described and on the north (with the exception of the inclosure numbered 477 which lies to the north of and adjoins Old Mill Lane) by Old Mill Lane.

PART II.

LANDS FOR MUSEUM PURPOSES.

(A) Certain lands in the parish and borough of Mansfield containing 1745 square yards or thereabouts and bounded on the north-west in part by land belonging to the Corporation and in part by land belonging to the Duke of Portland K.G. on the north-east by land belonging to the Duke of Portland K.G. on the south-east by the Midland Railway and on the south-west by land belonging to the trustees of John Jesse Handley.

(B) Certain other lands in the parish and borough of Mansfield containing 305 square yards or thereabouts and bounded on the south-east by the lands lastly herein-before described on the south-west by land belonging to the Corporation on the north-west by Leeming Street and on the north east by land belonging to Charles Ernest Greenwood.

Printed by EYRE and SPOTTISWOODE,

FOR

ROWLAND BAILEY, Esq., M.V.O., I.S.O., the King's Printer of Acts of Parliament.

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